25-1017 REPUBLICAN NATIONAL COMMITTEE V. MI FAMILIA VOTA

DECISION BELOW: 129 F.4th 691

LOWER COURT CASE NUMBER: 24-3188, 24-3559, 24-4029

QUESTION PRESENTED:

Like every other State, Arizona permits only United States citizens to vote in federal elections. To enforce that qualification, Arizona requires every applicant who registers to vote to produce "satisfactory evidence of citizenship." Ariz. Rev. Stat. §16-121.01(C). If election officials obtain "information" from periodic inspections of Arizona's voter rolls that "confirms" a "person registered is not a United States citizen," they "cancel the registration." *Id*. §16-165(A)(10).

The Ninth Circuit held that the National Voter Registration Act-52 U.S.C. §§20506(a)(6)(A)(ii), 20508(b)(1), 20507(c)(2)(a)-preempts those provisions of Arizona law. It also held that Arizona cannot require voter-registration applicants to produce proof of citizenship because in 2018, a previous Arizona Secretary of State entered a consent decree with private litigants. This Court has granted an emergency stay on each issue: One in this case and one in a Fourth Circuit case. The RNC raises both questions here on the merits. The questions presented are:

(1) Does the National Voter Registration Act or a federal consent decree prohibit Arizona from requiring voter-registration applicants to produce "satisfactory evidence" of U.S. citizenship when registering with a state registration form?

(2) Does the National Voter Registration Act prohibit Arizona from implementing a program within 90 days of a federal election to cancel the registrations of voters who are not U.S. citizens?

CERT. GRANTED 6/29/2026